

FORMAL NOTICE OF MATERIAL BREACH AND DATA PROTECTION VIOLATION

Reference: NOB-TV-2026-04-30

Date: April 30, 2026

From: TechVenture SARL

To: CloudAxis Solutions SARL

Subject: Material breach of SPSA-TV-CA-2025-011 SLA failure, undisclosed infrastructure migration, and confirmed data loss.

1) Breach Allegations

A) Undisclosed Infrastructure Migration

CloudAxis performed an infrastructure migration on April 26, 2026 without providing TechVenture advance written notice as required under the business continuity provisions of the agreement. This constitutes a material breach of the transparency and planned maintenance obligations.

B) SLA Availability Breach

Platform unavailability of 23 hours 40 minutes in April 2026 represents a critical and material breach of the 99.7% monthly availability commitment. The contracted maximum monthly downtime is approximately 2.2 hours.

C) P1 Response SLA Breach

CloudAxis exceeded the 8 business hour P1 resolution commitment by approximately 14 hours. No escalation to a senior engineer occurred within the contractual response escalation window.

D) Data Loss RPO Breach

CloudAxis confirmed that approximately 24 hours of incremental backup data is unrecoverable. This directly breaches the 24-hour RPO commitment and the data backup obligations under the agreement.

E) Late Data Breach Notification

CloudAxis first confirmed data loss on April 28, 2026 more than 24 hours after the incident began. The contractual notification obligation requires notification within 24 hours of discovery. TechVenture may have regulatory reporting obligations as a result of this delay.

2) Cure Demands

TechVenture demands the following by May 6, 2026:

- Full written root cause analysis with technical remediation plan
- Complete restoration of all recoverable data with verification report
- Confirmation of ISO 27001 certification status
- Updated disaster recovery plan and test results dated within 90 days
- Revised and corrected April invoice removing SLA credit obligations

3) Financial Reservation

TechVenture reserves the right to withhold the disputed April invoice pending resolution and to recover all documented internal response costs, payroll re-entry costs, customer reconciliation costs, and any regulatory filing costs. Estimated direct costs currently stand at 28,400 TND with further amounts pending.

4) Regulatory Notification Notice

Given the confirmed data loss affecting customer transaction data, TechVenture's compliance team is assessing whether regulatory notification is required under Tunisian data protection law. CloudAxis must not destroy any logs, backups, or infrastructure records related to the April 26 incident pending this assessment.

5) Reservation of Rights

TechVenture reserves all contractual rights including termination if cure is not completed by May 6, 2026. This notice does not waive any rights or remedies. Deadline for CloudAxis full response: May 6, 2026 at 17:00 Tunis time.